

****Dossieraggio and Wounded Democracy: Let's Start from the Right to Privacy****

It is not an option, it is not a fetish, it is not “a sort of metaphysical aspiration”; above all, it is not and cannot be a right invoked at will by the powerful when a violation of privacy harms or risks harming their image, their reputation, their ambitions, the way they want to be seen by society. It is a cornerstone of our democracy.

****Intervention by Guido Scorza, Member of the Guarantor for the Protection of Personal Data****
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Amid ongoing judicial investigations, parliamentary hearings, and political instrumentalizations of every kind, if one has the institutional responsibility to guarantee privacy in Italy, writing, giving interviews, or actively participating in the public debate about what has happened at – or perhaps better, starting from – the National Anti-Mafia Directorate is inappropriate because one inevitably runs the risk of being pulled by the jacket from one side or the other, of losing that indispensable impartiality and independence from political matters, and, above all, of fueling the degradation and devaluation of the right to privacy, already dragged and tugged into a noisy, polarized, and polarizing political arena, more interested in ephemeral electoral successes than in the real affirmation and defense of rights and freedoms.

And yet, certain more general considerations about the context in which the episode has unfolded seem necessary and, perhaps, indeed, appropriate because what we are experiencing – aside from the ascertainment of specific facts and responsibilities – could be the right moment to acknowledge the circumstance that the right to privacy, in democracy, is not an option, it is not a fetish, it is not “a sort of metaphysical aspiration,” as recently suggested, disheartened, by the Minister of Justice, and, above all, it is not and cannot be a right invoked at will by the powerful when a violation of privacy harms or risks harming their image, their reputation, their ambitions, the way they want to be seen by society.

It is too convenient but, above all, dramatically useless to remember that privacy is important when one's own is violated.

If a tragedy of democracy like the one that has likely unfolded around the so-called dossieraggio can deliver a valuable lesson to the country, this lesson probably tells of a right – that to privacy, to the protection of personal data, to personal identity – that is – or at least should be – a cornerstone of our democracy while it is too often vilified, offended, reduced to the role of an anachronistic and moribund fetish by quibblers or academics overtaken by time, a bothersome bureaucratic obligation, a brake on the country's development, an obstacle to national security, to medical research, to innovation, and so on.

For heaven's sake, no illusions that this will actually happen.

It is not the first time we have the opportunity to learn from such a lesson and then, once the storm has passed in one way or another, everything returns exactly as before, with a series of rights, needs, objectives systematically considered more important, more urgent, more valuable than privacy and, therefore, destined to prevail over it, overwhelm it, relegate it to the role of a fragile, renounceable right, overtaken by time or, in any case, not essential.

It is even pointless to try to enumerate the many missed opportunities in this sense between the first, second, and third republics.

But we have already seen dozens of scandals related to interceptions and state trojans, secret organizations whose strength was based on the possession of stolen confidential data and information, episodes of dossieraggio not too different from the one we are facing now. And yet, to avoid declaring oneself defeated from the outset, it is worth perhaps laying out a couple of reflections dictated by civic sense and love for the future that we should pass on to our children more than by law.

The first is that – regardless of what will specifically be ascertained by the competent authorities – what has happened is the result of a system in which, in the balancing of rights, essential to the democratic life of a country, something has gone wrong, and certain rights have been recognized as more

important than others, among which, certainly, is the right to the protection of personal data.

If a speed limit is set at two hundred kilometers per hour and a suitable road network is not designed and built, one cannot then be surprised if, with a certain frequency, serious and very serious accidents occur.

In short – however it happened and whoever bears legal responsibilities – given the design and construction of the system, what has occurred has been the realization of a systemic and predictable risk and not an extraordinary event.

The second consideration serves to prevent the first from being misunderstood. In a democracy, there are no tyrannical rights.

To suggest, therefore, that what has happened is, to some extent – while of course maintaining the responsibilities of individuals that will be ascertained in the appropriate venues – the result of a system designed and built imperfectly in which more concern was given to the fight against crime than to the defense of privacy does not mean suggesting that one should – or must – give up equipping the judiciary with suitable tools to combat crime.

****Crime.****

Also because if that were the case, many would rush to assert, convinced that it was a justified risk, an inevitable consequence, a necessary choice because without that disparity between rights, the country would not have had and could not have equally effective tools to combat crime in all its forms.

But the point is another.

Good governance is that which never places people in front of the most odious of choices: that between two fundamental rights. Do you want more security or more privacy, more justice or more privacy, more crime or less privacy? And so on. Good governance is that which is capable of guaranteeing citizens a sustainable measure of all rights, compressing each right – including fundamental ones – to the minimum necessary to ensure the exercise and implementation of the others.

And it is at least reasonable to doubt that this rule has been followed thus far.

But it is not too late to reconsider certain choices and inspire new ones towards a greater and better balance, also because, as suggested in 1928 by Louis Brandeis, Justice of the Supreme Court of the United States of America, in the first trial against a whisky smuggler, entirely based on wiretaps:

“Times change and make available to the government more subtle and far-reaching tools to invade privacy. Discoveries and inventions have made it possible for the government, with means much more effective than force, to obtain information that has been whispered in a wardrobe... The progress of science in providing the government with means of espionage will not stop at wiretaps. Ways may be developed through which the government, without removing documents from secret drawers, can produce them in court and with which it will be allowed to expose to a jury the most intimate events that take place in a home. Advances in psychic and related sciences may lead to means to explore unexpressed beliefs, thoughts, and emotions.”

And it has happened just like that, and we are only at the beginning.